

Jitendra Yadav v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 6 October 2023 · 2023:AHC:192655-DB · Writ-C No. 34238 of 2023 · **Writ disposed; clause 6.14 instalment application to be decided within fifteen days.**

HEADNOTE

A writ against an electricity demand of Rs. 1,20,148 was disposed of without examining the demand. The consumer having offered to pay the entire amount in instalments, any application under clause 6.14 of the U.P. Electricity Supply Code, 2005 is to be decided by the licensee within fifteen days of presentation of the certified copy of the order.

FACTUAL SUMMARY

Jitendra Yadav approached the Allahabad High Court against a demand notice of the Electricity Department for Rs. 1,20,148. His counsel stated that he was ready and willing to deposit the entire amount in instalments. Counsel for the Department submitted that, if so, the petitioner could approach the relevant authority under clause 6.14 of the U.P. Electricity Supply Code, 2005 for payment of the amount by instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment payment of electricity dues

HOLDING

Where the consumer, while challenging an electricity demand, states readiness to deposit the entire amount in instalments, the Court does not examine the demand and directs that an application under clause 6.14 of the U.P. Electricity Supply Code, 2005 be decided within fifteen days of presentation of the certified copy of the order. ¶ 1

PRINCIPLE TAGS

instalment-payment-clause-6.14

Willingness to pay the demanded sum in instalments was routed to the licensee under clause 6.14, with a direction to decide that application within fifteen days and without any finding on the demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE FOR RS. 1,20,148 WAS LAWFUL, AND WHETHER INSTALMENTS MUST BE GRANTED.

The writ was disposed of without going into the merits; both questions were left to the decision on the clause 6.14 application. ¶ 1